BAP No. [———–]

UNITED STATES BANKRUPTCY APPELLATE PANEL FOR THE EIGHTH CIRCUIT

IN RE [DEBTOR NAME],
Debtor.

v.

[APPELLANT NAME],
Appellant,

v.

[APPELLEE NAME],
Appellee.

Appeal from the United States Bankruptcy Court for the [District] (placeholder: not a filed document)

BRIEF OF APPELLEE

[Counsel Name]
[Bar Number]
[Firm Name]
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CERTIFICATION OF INTERESTED PARTIES

BAP No. [———]

The undersigned, counsel of record for Appellee [APPELLEE NAME], certifies that the following listed party (or parties) has (have) an interest in the outcome of this appeal. These representations are made to enable the judges of the panel to evaluate possible disqualification or recusal.

- [Appellant name], Appellant
- [Appellee name], Appellee
- [Counsel firms, if any]

/s/ [Counsel Name]
Attorney for Appellee [APPELLEE NAME]
Dated: [Date]

CERTIFICATION OF RELATED CASES

None known. (Placeholder text; no related case has been identified.)

/s/ [Counsel Name]
Attorney for Appellee [APPELLEE NAME]
Dated: [Date]

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SUMMARY OF ARGUMENT

The appellee's position is that the bankruptcy court's order rests on the correct standard and on findings the record supports. Placeholder text: the summary states the arguments made in the body and does not repeat the headings.

ARGUMENT

I. THE BANKRUPTCY COURT APPLIED THE CORRECT STANDARD

Placeholder text: the appellee responds to the appellant's first issue. The argument cites the governing rule, Fed. R. Bankr. P. 8014(b), which sets out what an appellee's brief must contain.

A. The appellant's reading of the rule is incomplete

Placeholder paragraph. The response explains why the appellant's reading would expand the estate beyond 11 U.S.C. § 541(a) and why the court's narrower reading is the one the statute supports.

B. The record supports the findings

Placeholder paragraph. The appellee cites the record at each point and explains why the findings the appellant challenges are not clearly erroneous.

II. THE SECOND RULING IS NOT AN ABUSE OF DISCRETION

Placeholder text: the appellee responds to the second issue, and the argument states the length of this brief is governed by Fed. R. Bankr. P. 8015(a)(7)(B).

CONCLUSION

For these reasons, the appellee asks the Panel to affirm the order of the bankruptcy court.

Respectfully submitted,

/s/ [Counsel Name]
[COUNSEL NAME]
[Firm Name]
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[Date]

CERTIFICATE OF COMPLIANCE

1. This brief complies with the type-volume limitation of Fed. R. Bankr. P. 8015(a)(7)(B) because, excluding the parts of the brief exempted by Fed. R. Bankr. P. 8015(g):

[X] this brief contains 195 words.

2. This brief complies with the typeface requirements of Fed. R. Bankr. P. 8015(a)(5) and the type-style requirements of Fed. R. Bankr. P. 8015(a)(6) because:

[X] this brief has been prepared in a proportionally spaced typeface using Typst 0.15.0 in 14-point EB Garamond roman type.

/s/ [Counsel Name]
Attorney for Appellee [APPELLEE NAME]
Dated: [Date]

CERTIFICATE OF SERVICE

I hereby certify that on [Date], I electronically filed the foregoing with the Clerk of the United States Bankruptcy Appellate Panel for the Eighth Circuit by using the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ [Counsel Name]
Attorney for Appellee [APPELLEE NAME]
Dated: [Date]